

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 02/02/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED
THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER
ABOVE.

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ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhldz09](https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhldz09)

Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion

1. 9:00 AM CASE NUMBER: C22-01552
CASE NAME: SCHAEFER VS. BNSF RAILWAY COMPANY
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: BNSF RAILWAY COMPANY
TENTATIVE RULING:

Before the Court is Defendant BNSF Railway Company's motion for judgment on the pleadings. The Motion is opposed by Plaintiff Melissa Welsh-Schaefer and Kaylee Mello as well as Plaintiff Ronny Schaefer.

As a threshold issue, Plaintiffs Welsh-Schaefer and Mello argue that the Motion is untimely under CCP § 438(e). Subdivision (e) of section 438 provides that: "No motion may be made pursuant to this section if a pretrial conference order has been entered pursuant to section 575, or within 30 days of the date the action is initially set for trial, whichever is later, unless the court otherwise permits."

Case law under this section allows courts the broadest of discretion to conclude what the court “otherwise permits.” Specifically, section 438, subdivision (e) “authorizes the trial court to permit late filings of such motions and does not specify any grounds which might serve to limit its power to do so.” (*Sutherland v. City of Fort Bragg* (2000) 86 Cal.App.4th 13, 25, fn. 4; see *Burnett v. Chimney Sweep* (2004) 123 Cal.App.4th 1057, 1063 [§ 438, subd. (e) permits late filings of motions for judgment on the pleadings and does not impose a “good cause” requirement].)

First, as noted by Defendant on reply, no pretrial conference order has yet been entered and there is currently no trial date. Second, even if the motion were untimely, the Court could permit it in its discretion.

Defendant moves pursuant to Code of Civil Procedure section 438 for judgment on the pleadings on the grounds that Plaintiffs’ “are estopped from claiming that the railroad crossing at which the incident occurred was in or represented a dangerous condition at the time of the incident pursuant to the Court’s prior order granting the City of Oakley’s Motion for Summary Judgment.

For the following reasons, the motion is **DENIED**.

Judicial Notice

Defendant requests judicial notice of the Court’s Order After Hearing granting City of Oakley’s Motion for Summary Judgment. The unopposed motion is **GRANTED**. (Evid. Code §§ 452, 453.)

Legal Standard

The standard for granting a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer. (*Burnett v. Chimney Sweep* (2004) 123 Cal.App.4th 1057, 1064.) As a consequence, it may be granted if, from the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (Code Civ. Proc. § 438(d); *Saltarelli & Steponovich v. Douglas* (1995) 40 Cal.App.4th 1, 5; Weil & Brown, Civ. Pro. Before Trial (The Rutter Group 2010) p. 7:292.) As such, a motion for judgment on the pleadings involves the same type of procedures that apply to a general demurrer. (*Richardson-Tunnell v. School Ins. Program for Employees* (2007) 157 Cal.App.4th 1056, 1061; *Burnett, supra*, 123 Cal.App.4th at p. 1064.) In considering a motion for judgment on the pleadings, courts consider whether the factual allegations, assumed true, are sufficient to constitute a cause of action. (*Fire Ins. Exchange v. Sup. Ct.* (2004) 116 Cal.App.4th 446, 452-453.) Also, like a demurrer, a motion for judgment on the pleadings does not lie as to only part of a cause of action. (*Id.* at p. 452; Weil & Brown, Cal. Practice Guide: Civ. Pro. Before Trial (The Rutter Group 2025) p. 7:295.)

Brief Factual Background

This case arises out of an accident at a railroad crossing. Plaintiffs allege that Decedent Joshua Schaefer was released from Delta Vista Middle School at approximately 12:30 p.m. on August 25, 2021. (SAC at ¶ 23.) Kaylee Mello was driving Decedent home from school when she proceeded over East Cypress Road toward Main Street. (*Id.* at ¶ 24.) Plaintiffs allege that Mello’s vehicle proceeded over the railroad tracks and passed the crossbuck before any warnings were activated and before the crossing arm began to descend. (*Id.*)

Plaintiff alleges that “as a result of the lack of appropriate railroad preemption and improper signal light timing at surrounding intersections, the confusing and unsafe lane configuration changes, and simultaneous dismissal of a thousand students, and the failure to provide a reasonable TCP with adequate warnings to drivers, the subject railroad crossing became a trap and Mello’s vehicle, as well as other vehicles, including vehicles driven by Kathryn Mandap and Carmen Ortiz-Guzman, became

unexpectedly trapped on the subject railroad crossing.” (SAC at ¶ 25.)

A BNSF freight train struck Mello’s vehicle at approximately 12:51 p.m., “causing Joshua Schaefer to sustain multiple severe physical injuries which resulted in his death.” (SAC at ¶ 26.)

Analysis

Defendant moves for judgment on the pleadings on the grounds that Plaintiffs “are estopped from claiming that the railroad crossing at which the incident occurred was in or represented a dangerous condition at the time of the incident pursuant to the Court’s prior order granting the City of Oakley’s Motion for Summary Judgment.” (Notice at 1:28-2:2.)

There are two separate types of *res judicata*: claim preclusion and issue preclusion. “Claim preclusion, the primary aspect of *res judicata*, acts to bar claims that were, or should have been, advanced in a previous suit involving the same parties. [Citation.] Issue preclusion, the secondary aspect historically called collateral estoppel, describes the bar on relitigating issues that were argued and decided in the first suit.” (*DKN Holdings LLC v. Faerber* (2015) 61 Cal.4th 813, 824 (*DKN Holdings*) [internal quotation marks omitted].)

Claim Preclusion

“Claim preclusion ‘prevents relitigation of the same cause of action in a second suit between the same parties or parties in privity with them.’ [Citation.] Claim preclusion arises if a second suit involves (1) the same cause of action (2) between the same parties (3) after a final judgment on the merits in the first suit.” (*DKN Holdings, supra*, 61 Cal.4th at p. 824.) “As applied to questions of preclusion, privity requires the sharing of ‘an identity or community of interest,’ with ‘adequate representation’ of that interest in the first suit, and circumstances such that the nonparty ‘should reasonably have expected to be bound’ by the first suit. [Citation.] A nonparty alleged to be in privity must have an interest so similar to the party’s interest that the party acted as the nonparty’s ‘virtual representative’ in the first action.” (*Id.* at p. 826.)

Claim preclusion does not apply because this is not a second suit; as a consequence, the Court need not reach the additional elements and turns to the issue of whether issue preclusion applies.

Issue Preclusion

Issue preclusion “prohibits the relitigation of issues argued and decided in a previous case, even if the second suit raises different causes of action. [Citation.] Under issue preclusion, the prior judgment conclusively resolves an issue actually litigated and determined in the first action.” (*DKN Holdings, supra*, 61 Cal.4th at p. 824.) Unlike claim preclusion, “issue preclusion does not bar entire causes of action. Instead, it prevents relitigation of previously decided issues.” (*Id.*) Also unlike claim preclusion, “issue preclusion can be raised by one who was not a party or privy in the first suit.” (*Id.*)

“In summary, issue preclusion applies: (1) after final adjudication (2) of an identical issue (3) actually litigated and necessarily decided in the first suit and (4) asserted against one who was a party in the first suit or one in privity with that party.” (*DKN Holdings, supra*, 61 Cal.4th at p. 825.)

Defendant argues that the issue of whether the roadway at the Subject Crossing constituted a dangerous condition was “fully litigated and necessarily decided pursuant to a final decision on the merits.” (Motion at 7:2-3.)

Critically, for issue preclusion to apply, the decision must be final and on the merits. The basic rule is that while an appeal is pending, a judgment is not final. (*McKee v. National Union Fire Ins. Co.* (1993) 15 Cal.App.4th 282, 286.) This is because “a judgment does not become final so long as the action in

which it was rendered is pending and an action is deemed pending until it is finally determined on appeal or until the time for appeal has passed. The determination of the issue in the case is held in abeyance until the appeal is finally decided by an appellate court and the appeal operates to “keep alive the case ... as it existed before the judgment was rendered.” ’ ’ (Id. at p. 288.) An appeal is final on the date remittitur issues. (*Hoover v. Galbraith* (1972) 7 Cal.3d 519, 525–526; *Cory v. Poway Unified School Dist.* (1983) 147 Cal. App. 3d 1158, 1165; *Macedo v. Bosio* (2001) 86 Cal.App.4th 1044, 1051, fn. 5.)

Here, Plaintiff Ronny Schaefer filed and served a Notice of Appeal from judgment after the order granting the City’s Motion on October 31, 2025. Plaintiff’s appeal is currently pending with the First Appellate District, Division 1, Case Number A175225. (Rose Decl., ¶ 4, Ex. 3.) As a consequence, issue preclusion is not available because the judgment is not final.

Even if the Court were to conclude that there had been a “final adjudication,” the Court does not conclude that defendant BNSF Railway Company has shown that the issue decided previously is identical with the one sought to be precluded. (See *Ayala v. Dawson* (2017) 13 Cal.App.5th 1319, 1332 [for purposes of issue preclusion a “final judgment” includes any prior adjudication of an issue in another action that is determined to be sufficiently firm to be accorded conclusive effect.].)

A corollary of the rule that collateral estoppel is confined to issues “actually litigated” is the requirement that the issue decided previously be “identical” with the one sought to be precluded. (*United States Golf Assn. v. Arroyo Software Corp.* (1999) 69 Cal.App.4th 607, 616.)

Here, the previous issue litigated was whether the City of Oakley’s public property was in a dangerous condition within the meaning of Government Code section 835. Against BNSF, Plaintiffs have alleged a cause of action for negligence. However, Defendant BNSF’s liability for negligence is not coextensive with the issue of whether the City of Oakley is liable for dangerous condition of public property. Consequently, the issue decided in the City of Oakley’s motion for summary judgment is not identical to the issue for which BNSF seeks preclusion.

The motion for judgment on the pleadings is **DENIED**.

2. 9:00 AM CASE NUMBER: C22-01552
CASE NAME: SCHAEFER VS. BNSF RAILWAY COMPANY
***HEARING ON MOTION IN RE: BIFURCATE LIABILITY FROM DAMAGES.**
FILED BY: BNSF RAILWAY COMPANY
TENTATIVE RULING:

Before the Court is Defendant BNSF Railway Company’s motion to bifurcate liability from damages. The Motion is opposed by Plaintiff Melissa Welsh-Schaefer and Kaylee Mello as well as Plaintiff Ronny Schaefer.

For the following reasons, the motion is **DENIED**.

Legal Standard

Upon a properly noticed motion of a party made no later than the close of pretrial conference, or in other cases, no later than 30 days before the trial date, a court may bifurcate a trial into separate issues when the convenience of witnesses, the ends of justice, or the economy and efficiency of

handling the litigation would be promoted thereby. (Code Civ. Proc. § 598.) Additionally, the trial court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, or of any separate issue of any number of causes of action, preserving the right of trial by jury as required by the Constitution or a statute of this state or of the United States. (Code Civ. Proc. § 1048(b).)

The discretion of the trial court to bifurcate claims and try them separately is broad and will not be disturbed on appeal, except for abuse. (*National Electric Supply Co. v. Mt. Diablo Unified School Dist.* (1960) 187 Cal.App.2d 418; see *Buran Equip. Co. v. H & C Investment Co.* (1983) 142 Cal.App.3d 338, 343-344.)

Analysis

Having reviewed the briefing, the Court is not persuaded that judicial economy would be served by bifurcating liability from damages.

Defendant argues that “[w]ith very limited exception, the damages phase will consist of witnesses who are wholly distinct from those offered on the issue of liability” and that “[o]nly three witnesses can reasonably be expected to offer testimony pertaining to both liability and damages”—specifically Kaylee Mello (the driver), Sarah Salagi (a witness who performed CPR on the decedent), and Logan Cartwright (the officer who responded to the incident. (Motion at 4:20-26.) Defendant also argues that “[d]amages evidence will undoubtedly be prejudicial” because it is probably that “passion and sympathy will impact the jury’s evaluation of liability[.]” (Id. at 5:15-16.)

In opposition, Plaintiffs argue that duplication of evidence is certain if bifurcation were ordered. Specifically, that both Kaylee Mello and Sarah Silagi would have to testify twice in a bifurcated trial. (Schaefer Opp. at § III(A); Welsch-Schaefer and Mello Opp at § III(B)(1).) Plaintiffs also argue that the facts relating to liability and damages are interconnected—for example, plaintiffs’ allegation that the BNSF train was traveling at an excessive speed is relevant to both liability (negligent operation) and damages (severity of injuries and death). (Id. at § III(B)(2).)

On reply, Defendant disputes that the evidence is so interconnected as to preclude bifurcation and that the “[t]he prejudice BNSF seeks to remedy through bifurcation is a cumulative issue.” (Reply to Wells-Schaefer and Mello Opp. at 4:7-8.) The Court notes that to some degree this argument presumes that the prejudice would be ameliorated should BNSF prevail on liability.

Ultimately, the Court finds that Defendants have failed to demonstrate sufficient cause to bifurcate this action. The purpose of bifurcation is to promote efficiency. Here, Defendant has not shown that doing so would convenience the parties or witnesses, avoid prejudice, or promote judicial economy or efficiency.

3. 9:00 AM CASE NUMBER: C22-02694
CASE NAME: JANE DOE VS. GERALD BEARDEN
HEARING ON SUMMARY MOTION BY USA EQUESTRIAN TRUST, INC.
FILED BY:
TENTATIVE RULING:

This hearing was vacated by the Court’s Order entered January 20, 2026.

4. 9:00 AM CASE NUMBER: C23-02697
CASE NAME: IDO ADLER VS. ANDERSON RANCH SINGLE FAMILY OWNERS ASSOCIATION
*HEARING ON MOTION IN RE: LEAVE TO FILE A 2ND AMENDED COMPLAINT
FILED BY: ADLER, IDO
TENTATIVE RULING:

Before the Court is a motion by plaintiffs for leave to file a Second Amended Complaint. The motion is **granted**, as discussed below. Plaintiffs may file and serve the proposed Second Amended Complaint, attached as Exhibit B to the Declaration of Zachary D. Schorr, on or before February 13, 2026.

Background

Parties are familiar with the factual background of this case, which is set forth in the Court's 11/13/25 order denying plaintiffs' MSJ, and need not be repeated here. In sum, this matter involves questions regarding an easement over defendant's property to access plaintiffs' property, including whether one exists and if so, the scope and location.

Plaintiffs filed suit against defendant, Anderson Ranch Single Family Owners Association ("Anderson Ranch") in 2023 and later filed their First Amended Complaint on June 10, 2024. The FAC alleged causes of action for quiet title and declaratory relief and injunctive relief. Anderson Ranch answered on August 13, 2024, asserting sixteen "affirmative defenses."

The Court denied a motion by Anderson Ranch sought to expunge the lis pendens in early 2025 and later that same year, denied a motion for summary adjudication filed by plaintiffs. The order denying summary adjudication specifically noted that a description of the easement would be required to enter judgment on plaintiffs' cause of action for quiet title.

On December 12, 2025, plaintiffs filed this motion for leave to file a Second Amended Complaint ("SAC"). Their proposed SAC is attached to counsel's declaration in support of the motion. (See Declaration of Zachary D. Schorr, hereinafter "Schorr Decl.," Ex. B.) A redline showing proposed changes to the First Amended Complaint is also attached to counsel's declaration. (Schorr Decl., Ex. A.)

Anderson Ranch opposes the motion, arguing it is untimely and that the proposed new causes of action are based on protected activity (litigation conduct) and subject to a motion to strike pursuant to California's Anti-SLAPP statute. Anderson Ranch further argues that the plaintiffs' settlement communications demonstrate improper litigation tactics.

Evidentiary Matters

Plaintiffs' objections to defendant's counsel's declaration are **overruled**.

Discussion

Code of Civil Procedure section 473(a)(1) provides the Court discretion to permit a party to amend its pleadings. The general rule is that the Court should exercise this discretion liberally in favor of amendments, to permit the resolution of all disputed matters between two parties in a single proceeding, up to and including trial. (See, e.g., *Lincoln Prop. Co., N.C., Inc. v. Travelers Indem. Co.*

(2006) 137 Cal.App.4th 905, 916.) “The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified. (*Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428, citation omitted; *Kittredge Sports Co. v. Super. Ct.* (1989) 213 Cal.App.3d 1045, 1048 [“it is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment”].) A party opposing amendment must demonstrate that permitting the amendment will cause it to suffer prejudice. (*Rickley v. Goodfriend* (2013) 212 Cal.App.4th 1136, 1159; see also *Mesler v. Bragg Mgmt. Co.* (1985) 39 Cal.3d 290, 296-297.)

Prejudice exists where the amendment would impinge a party’s ability to effectively defend itself at trial. (*Estate of Murphy* (1978) 82 Cal.App.3d 304, 311 [with “the jury in the box” and “the trial ready to proceed,” proposed amendment opened up entirely new field of inquiry without any satisfactory explanation as to why this major change in point of attack had not been made long before trial; further, there was no opportunity for parties to conduct any discovery]; see also *Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-487 [amendment proposed on the eve of trial and would not permit defendant sufficient time to discover or depose the witnesses who would support the new allegations or to marshal evidence to oppose the claim]; *P&D Consultants, Inc. v. City of Carlsbad* (2010) 190 Cal.App.4th 1332, 1345 [amendment not sought until after trial readiness conference].)

In all of these cases, prejudice to the opposing party was found due to the extreme proximity of trial. “Where the trial date is set, the jury is about to be impaneled, counsel, the parties, the trial court, and the witnesses have blocked the time, and the only way to avoid prejudice to the opposing party is to continue the trial date to allow further discovery, refusal of leave to amend cannot be an abuse of discretion.” (*Magpali, supra*, 48 Cal.App.4th at p. 488.) In the absence of prejudice, even unreasonable delay is insufficient to warrant denying a motion for leave to amend. (*Kittredge Sports Co., supra*, 213 Cal.App.3d at 1048.)

While the amendments may lead to new discovery, as set forth in the opposition brief, there is presently no trial date and plaintiffs still have at least two years to bring the matter to trial. Both sides have sufficient time to thoroughly investigate facts related to the new allegations.

Defendant asserts that “[c]ourts have upheld denials of leave to amend when the requesting party fails to provide a reasonable explanation for the delay or when the amendment is sought during or after summary judgment proceedings.” The cases defendant cites for this assertion are specific to summary judgment. In other words, while a plaintiff may, in response to a defendant’s meritorious summary judgment motion, seek leave to amend the complaint in order to overcome issues presented by summary judgment, a plaintiff may not, without explanation, delay in formally seeking such leave to amend until the time of hearing (or right before the hearing) on summary judgment. (See *Melican v. Regents of University of California* (2007) 151 Cal.App.4th 168, 176 [plaintiff waited until hearing; *Falcon v. Long Beach Genetics, Inc.* (2014) 224 Cal.App.4th 1263, 1280 [same]; *Levy v. Skywalker Sound* (2003) 108 Cal.App.4th 753, 761 [plaintiff mentioned amending in opposition, but did not file a noticed motion]; *Huff v. Wilkins* (2006) 138 Cal.App.4th 732, 746 [plaintiff waited until three days before the summary judgment hearing to seek leave to add allegations avoiding primary assumption of risk doctrine].) Allowing such last-ditch efforts by plaintiffs would prejudice defendants that go to the trouble of filing summary judgment motions.

The posture of this case is different. It was plaintiffs' motion for summary adjudication that was recently at issue, not any motion by defendant. Accordingly, the scope of the ruling on that motion was simply that plaintiffs were not entitled to judgment on their causes of action for quiet title or declaratory and injunctive relief, or on certain "affirmative defenses." Based on the limited application of that holding, defendant is incorrect that allowing amendment here would undermine the summary adjudication process by relitigating issues already decided. (See Opposition, 11:14-28.)

The Court does not find the sort of prejudice here that warrants a departure from the general rule in favor of permitting amendment.

As to defendant's argument that the motion should be denied because the conduct described in the SAC is subject to an anti-SLAPP motion to strike, the Court declines to deny the motion on that basis which, in any event, is not immediately apparent from the opposition papers. Consideration of the substantive merits should be addressed in future proceedings. (See *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 760 ["we believe that the better course of action would have been to allow [the plaintiff] to amend the complaint and then let the parties test its legal sufficiency in other appropriate proceedings"].)

5. 9:00 AM CASE NUMBER: C23-03064
CASE NAME: REIMAGINE CONSULTING VS. GS AND F PLANTS, INC
***HEARING ON MOTION IN RE: TRANSFER ACTION FOR COORDINATION UNDER CCP 403**
FILED BY: REIMAGINE CONSULTING

TENTATIVE RULING:

Introduction

Plaintiff Reimagine Consulting ("Reimagine") moves for an order to transfer *GS and F Plants, Inc. vs. Lee, et. al.*, (San Bernardino County Superior Court Case No. CIVSB2435845) (the "**San Bernardino Action**") to the above-entitled court for coordination with the above-entitled action. The motion is made on the grounds that the actions involve a common question of fact and law within the meaning of Code of Civil Procedure section 404, meet the standards for coordination specified in Code of Civil Procedure section 404.1, are not complex actions as defined by the Judicial Council, and that the moving party has made a good faith effort to obtain agreement to the transfer from all parties to each action.

For the reasons set forth below, Plaintiff's Motion to Transfer for Coordination is GRANTED.

Statement of Facts

Contra Costa Action

This case involves a breach of written contract. On October 12, 2022, Plaintiff and Defendants entered into a purchase agreement (the "Agreement") whereby, Plaintiff agreed to purchase a Natural Gas Generator (the "Generator") in exchange for a purchase price of \$1,000,000.00 USD. The Agreement called for four (4) separate payments. (Hayes Decl. Ex. 2, SAC ¶ 11.) First, Plaintiff paid the initial payment of \$100,000.00 upon signing of the Agreement (the "Initial Payment"). (Id.) Second,

upon Delivery of the Generator to Plaintiff's facility, Plaintiff owed an "Inspection Payment" of \$300,000.00. (Id.) Third, upon proper installation and energization of the Generator, Plaintiff would owe an "Operational Payment" of \$300,000.00. (Id.) Lastly, within twelve (12) months of obtaining "all necessary government permits", Plaintiff would owe the last payment of \$300,000.00. (Id.)

The Agreement required the Defendants to source the parts, install and energize the Generator. (Id at ¶ 14, and Ex. A.) However, following the Inspection Payment, it became clear that the Generator was missing critical parts to operate. (Id at ¶ 16.) To date, Plaintiff alleges that Defendants have failed to properly install the Generator. (Hayes Decl. ¶ 11.) Yet, to date, Plaintiff has spent a total of \$921,069.86, not including legal fees and related costs, for a Generator that is still not installed and energized. (Hayes Decl. ¶ 12.)

The Agreement was conditioned upon Reimagine obtaining approval and permits for the installation of the Generator from the City of Richmond and the California Air Resources Board. (See Hayes Decl. ¶ 13, Ex. 2, Ex. A, ¶ 9.) In the event, Buyer was unable to obtain the necessary permit from the CA Air Resources Board, then the Generator and equipment was to be returned to the Defendants, and all payments made to date would need to be returned to Plaintiff. (Id.) On or about October 19, 2022, the CA Air Resources Board notified Reimagine that the Generator could not be permitted. (Id.)

San Bernardino Action

In the **San Bernardino Action**, it is contended that on or around October 12, 2022, Defendant JAMES LEE, ("LEE"), as officer of REIMAGINE, and on behalf of REIMAGINE, falsely and fraudulently represented to Hingchung Chong ("Chong"), officer of GS&F, that REIMAGINE will pay \$1 million to acquire the Generator from GS&F, with payments to be made in four installments: first installment and initial deposit in the sum of \$100,000, second installment in the sum of \$300,000 to be paid after delivery of the Generator and inspection in seven days after delivery, third installments in the sum of \$300,000 to be paid after demonstrating the Generator can provide 1400 KW with 480 volts, ("Specification"), and the fourth installments in the sum of \$300,000 to be paid in the 12 months after the Generator is shown to meet the Specification; that REIMAGINE shall be responsible for all costs, including parts, material, and labor for site preparation and electrical connection; that Defendants shall take prompt and necessary actions to attain permits from regulatory agencies, within two months from the date of delivery of the Generator, in order for the Generator to be turned on, and that if the Generator does not prove to be operational, REIMAGINE shall return the Generator to GS&F for refund. (Hayes Decl, Ex. 3, ¶ 15.)

Plaintiff GS&F alleges that the representation made by LEE was in fact false. The true facts were that LEE used the foregoing representation to induce GS&F to deliver the Generator without intention to make the promised \$1 million dollar payments, after GS&F delivered the Generator on October 18, 2022, and REIMAGINE accepted the Generator after inspection on or around October 19, 2022. (Hayes Decl, Ex. 3, ¶ 15.)

When Defendant LEE made these representations, Defendant knew them to be false, and these representations were made by Defendant with the intent to defraud and deceive Plaintiff and with the intent to induce Plaintiff to act in the manner herein alleged. (Hayes Decl, Ex. 3, ¶ 17.)

Plaintiff, at the time these representations were made by Defendant LEE and at the time Plaintiff took

the actions herein alleged, was ignorant of the falsity of Defendants' representations and believed them to be true. In reliance on these representations, Plaintiff delivered the Generator to Defendant's site, assisted the installation and necessary connections, Defendants inspected the Generator with no issues, and Plaintiff was ready to demonstrate its operation meets the agreed requirement. However, Defendants refused to attain permit, refused to remit the third and the fourth payments, and refused to return the Generator to GS&F. Had Plaintiff known the facts, Plaintiff would not have taken such action. Plaintiff's reliance on defendant's representations was justified because the aforesaid arrangement is common commercial practice. (Hayes Decl, Ex. 3, ¶ 18.)

Procedural Background

Contra Costa Action

On December 4, 2023, Plaintiff Reimagine, filed in this Court, a Complaint against Defendants' GS and F Plants, Inc., Hin-Shing Chong, Henry Chong, Henson Chong, Ethan Li, and Does 1 through 20 inclusive, stating causes of action for: (1) Breach of Written Contract, (2) Breach of the Covenant of Good Faith & Fair Dealing, (3) Intentional Misrepresentation, (4) Negligent Misrepresentation, (5) Fraud in the Inducement (False Promise), (6) Unfair Business Practices (Cal. Code Civ. Proc. § 17200), and (7) Rescission (Cal. Civ. Code § 1689). (Hayes Decl. ¶¶ 9-10, Ex. 2.)

On March 4, 2024, GS & F Plants, Inc. filed a Motion to Transfer Venue. On June 27, 2024, the Court issued a detailed order explaining why venue was proper in Contra Costa County. (See Hayes Decl. ¶ 13.) On July 11, 2024, Attorney Chen for GS & F Plants filed and served a Petition for Writ of Mandate and/or Prohibition or Other Appropriate Relief to challenge the Court's venue order. (Id.) On July 18, 2024, without hearing any argument or considering any further briefings, the Court of Appeal summarily denied the writ. (Id.)

On June 14, 2024, Plaintiff, Reimagine, filed a First Amended Complaint ("FAC"). Defendants filed a demurrer to the FAC which was sustained, and this court granted Plaintiff the opportunity to file a Second Amended Complaint. (Hayes Decl. ¶¶ 9-10, Ex. 2.) On December 17, 2024, Plaintiff filed their Second Amended Complaint ("SAC") which identifies the exact same parties and causes of action. (Id.)

On or about April 9, 2025, Defendants and Cross Complainant, GS and F Plants, Inc., filed a Cross-Complaint for damages and restitution against Cross-Defendants Reimagine Consulting, James Lee, Green Richmond LLC, Tony Wei Tong Tom, 100 W Ohio LLC, and ROES 1 through 20 inclusive, stating causes of action for: (1) Conversion, (2) Rescission and Restitution, and (3) Reformation. (See Hayes Decl. ¶ 15.)

San Bernardino Action

On December 9, 2024, GS and F Plants, Inc., as the Plaintiff, filed a second lawsuit, Case No. CIVSB2435845, in San Bernardino Court, naming as Defendant's Reimagine Consulting and James Lee, stating causes of action for: (1) Fraud and Deceit, (2) Breach of Written Contract, and (3) Violation of Cal. Bus. & Prof. Code § 17200. On or about June 6, 2025, Defendants filed their Answer to Plaintiff's Complaint. This San Bernardino case was filed by the same Defendants named in the Contra Costa case, is based on the same Agreement entered by the Parties. (Hayes Decl. ¶¶ 16-17, Ex. 3.)

On March 28, 2025, Defendants, Reimagine Consulting and James Lee, filed a Motion to Stay the

Action and Transfer Venue to Contra Costa County court. (Hayes Decl. ¶ 18.) The hearing was scheduled for May 20, 2025, where the Court ultimately denied the Motion based upon the fact that venue could be considered proper in San Bernardino because the contractual payments were to be made to the Plaintiff, GS and F Plants, Inc., who is headquartered in San Bernardino County. (Id.)

Legal Standard for Transfer and Coordination

Under Code of Civil Procedure section 403, a court may transfer an action pending in another county for coordination with an action involving a common question of fact or law, provided the actions are noncomplex, the moving party has made a good-faith effort to obtain agreement, and the standards of Section 404.1 are met. Coordination is not governed by venue statutes, and a prior venue ruling does not preclude coordination. (*Keenan v. Superior Court* (1980) 111 Cal.App.3d 336, 340–42.)

Section 404.1 directs the Court to consider whether coordination will promote the ends of justice by evaluating, among other things:

- (1) whether common questions of fact or law predominate;
- (2) the convenience of parties, witnesses, and counsel;
- (3) the relative development of the actions;
- (4) the efficient utilization of judicial facilities and manpower;
- (5) the avoidance of duplicative or inconsistent rulings; and
- (6) the likelihood of settlement if coordination is denied. (CCP § 404.1.)

Coordination does not require identical causes of action or identical remedies. It is sufficient that common factual or legal issues are significant and central to the litigation. (*Keenan*, supra, 111 Cal.App.3d pp. 340-342.)

Analysis

Neither Action is Complex

These matters involve straightforward commercial claims arising from a single transaction between a limited number of parties. They do not present novel legal issues, an unmanageable number of witnesses, or the need for extraordinary judicial supervision. They are therefore noncomplex actions suitable for coordination under Section 403 and Rule 3.400 of the California Rules of Court.

Plaintiff Satisfied the Good-Faith Requirement

Plaintiff made repeated good-faith efforts to obtain Defendant's agreement to coordination before filing the Motion. Defendant refused. Plaintiff has therefore satisfied the statutory requirement of a good-faith effort to obtain agreement. (See Hayes Decl. ¶¶ 4-8 and Ex. 1; CCP § 403.)

Code of Civil Procedure Section 404.1 Factors

1. Common Question of Fact or Law

Plaintiff convincingly argues that both cases are based on allegations stemming from a 2022 written

Agreement concerning the purchase and installation of a Generator under the Agreement between the Buyer, Reimagine Consulting and its President James Lee, and Seller, GS and F Plants, Inc. and its CEO Hanson Chong. (Motion at p. 6: 16-19.)

It is Reimagine's position that Defendants breached the Agreement by not delivering a properly working Generator, failing to remedy issues relating to the missing parts required for the Generator to operate, and that Defendants misrepresented to Plaintiff that they had the acumen, ability, knowledge, business know-how, and access to hardware to expeditiously install and energize the Generator. In the San Bernardino case, it is GS and F Plants, Inc. who alleges that Reimagine failed to provide the full \$1 million purchase price of the Generator to GS and F Plants, Inc. (Motion at p. 6: 20-26.)

While the one breach of contract is written and the other oral, they do not diminish the significant, predominating commonalities between the cases. The cases arise out of the same underlying transaction. The facts surrounding the transaction and the relationship between the defendants, as well as the legal issues regarding their liability are predominating, significant questions in both cases. Both complaints are based on claims of breach of contract and related claims which stem from the same Purchase and Installation Agreement of the subject generator.

The Court finds the cases share common questions of fact or law that are predominating and significant to the litigation, which weighs in favor of transfer and consolidation.

2. Convenience of Parties, Witnesses, and Evidence

Defendant argues GS&F and its witnesses are all located in southern California, over 400 miles away from this Courthouse. It is inconvenient and burdensome for GS&F's witnesses to travel to this Court. (Oppo at p. 6: 8-10.)

Plaintiff contends that although, Defendant, GS&F, Inc. is headquartered in San Bernardino County, mostly all the evidence – including the Generator at issue in both these cases – is in Richmond, California within Contra Costa County. (Motion at p. 6: 27-28.) The Agreement required performance in Contra Costa County, and permitting by local and state agencies located in Contra Costa County is central to both cases. Documentary evidence and nonparty witnesses are also concentrated in this county. (Reply at p. 3: 20-23.) Defendant's reliance on the location of its own witnesses merely repackages venue arguments, which are irrelevant for this motion. (Keenan, *supra*, 111 Cal.App.3d at pp. 340–342.)

On balance, the convenience of the parties, witnesses, and counsel, weigh in favor of transfer and consolidation. (Cal. R. Ct., rule 3.300(d)(3).)

3. Relative Development of the Actions

The Contra Costa case was filed on 12/04/2023. The written discovery is complete. The settlement conference is set on 04/02/2026, the issue conference is set on 05/07/2026, and the jury trial is set on 06/01/2026. The San Bernardino Case was filed on 12/09/2024, discovery is ongoing, and the trial setting conference is set on 05/27/2026. (Oppo at p. 6: 12-14.)

Defendant argues that to coordinate the two cases, it is essential to vacate the dates for issue

conference and trial in this case and the date for trial setting conference in San Bernardino Case. Since the discovery in the San Bernardino case has not completed, Reimagine is asking to transfer the entire load of the San Bernardino Case to this case and to restart the trial setting anew. Calif. Rule of Court 3.521(d) provides, “The imminence of a trial in any action otherwise appropriate for coordination may be a ground for summary denial of a petition for coordination, in whole or in part.” (Oppo at p. 6: 16-21.)

Plaintiff contends although the Contra Costa action is further along procedurally, this factor does not defeat coordination. Section 404.1 expressly contemplates coordination of actions at different stages, and the coordination court has broad authority to manage scheduling and discovery to avoid inefficiency. The alternative, parallel litigation in two counties, guarantees duplication. (Reply at pp. 3-4.)

Although there is a pending trial date five months away, Plaintiff has chosen to deal with what comes with coordination and transfer of the San Bernardino case to the Contra Costa Case. However, this may cause delay to the Contra Costa County trial date. The relative development of the actions weighs against transfer and consolidation.

4. Judicial Economy and Efficient Use of Court Resources

Defendant argues there is no efficiency by transferring the San Bernardino Case to this Court. The net effect is to transfer the administration of the San Bernardino Case to this Court because the gravamen of the San Bernardino Case is the fraud scheme of Lee, the breach of an oral agreement, and the unfair business practice of Lee. On the other hand, the gravamen of this case is the alleged breach of a written agreement. (Oppo at p. 6: 22-26.)

Plaintiff contends absent coordination, two courts will be required to interpret the same Agreement, evaluate the same permitting contingency, and adjudicate overlapping claims for damages and equitable relief. Coordination promotes efficient utilization of judicial facilities and manpower and avoids redundant proceedings. (Reply at p. 4: 4-7; citing CCP § 404.1.)

California courts have repeatedly recognized that avoiding duplication and waste of judicial resources is a central purpose of coordination. (See *McGhan Medical Corp. v. Superior Court* (1992) 11 Cal.App.4th 804, 812.)

The two cases arise out of the same accident. Efficient utilization of judicial facilities and staff resources is promoted by having both cases in a single superior court. The efficient utilization of judicial facilities and staff resources, (Cal. R. Ct., rule 3.300(d)(5)), strongly weighs in favor of transfer and consolidation.

5. Risk of Inconsistent Rulings

Defendant argues there is no such risk. In this case, the ruling is based on the alleged breach of a written agreement. In the San Bernardino Case, the ruling is based on fraud in the context of an oral agreement. Since this case is far advanced procedurally, for argument’s sake, if there is any ruling that is applicable to the San Bernardino Case, Reimagine’s wise counsel is anticipated to ask the San Bernardino Court to apply it to the San Bernardino Case. (Oppo at pp. 6-7.)

Plaintiff contends without coordination, inconsistent rulings on contract interpretation, performance obligations, rescission, and restitution are not speculative; they are likely. The avoidance of inconsistent rulings is a core statutory objective of coordination. (Reply at p. 4: 12-15; citing CCP § 404.1; *Keenan*, supra, 111 Cal.App.3d at p. 340-342.)

The Court also considers "[t]he disadvantages of duplicative and inconsistent rulings, orders, or judgments." (Cal. R. Ct., rule 3.500(d)(7).) The two cases arise out of the same accident. Because each has raised claims sounding in breach of contract, there will be an opportunity for inconsistent or duplicative rulings if the two cases remain pending in separate superior courts. Duplicate proceedings waste judicial resources and inconsistent rulings, particularly regarding discovery, could result in significant confusion and protracted motion practice. Moreover, inconsistent judgments regarding the defendants' liability for the same incident must be avoided. The Court finds the disadvantages of duplicative and inconsistent rulings, orders, or judgments by having the two cases related to the same accident proceed separately weighs in favor of transfer and consolidation.

6. Likelihood of Settlement

Defendant argues this is another strong factor in favor of denying coordination. (Oppo at p. 7: 5-10.)

Plaintiff contends coordination promotes settlement by creating a unified factual and procedural record and reducing litigation costs. Fragmented proceedings in multiple courts undermine settlement prospects and incentivize tactical behavior, rather than resolution. (Reply at p. 4: 17-20; citing CCP § 404.1.)

This factor weighs in favor of transfer and consolidation.

On balance, the Court finds the relevant factors demonstrate that the ends of justice will be promoted by transfer and consolidation of the two actions in Contra Costa County. Accordingly, the Court orders the San Bernardino Action transferred to the Contra Costa County Superior Court for consolidation with Contra Costa County Case No. C23-03064.

The Court Consolidates the Actions for Trial

Pursuant to Code of Civil Procedure section 403, "[t]he court to which a case is transferred may order the cases consolidated for trial pursuant to Section 1048 without any further motion or hearing." Section 1048(a) provides "[w]hen actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." The Court consolidates the actions for trial without prejudice to the parties or assigned judicial officer determining that consolidation for all purposes is preferable or, at a later stage in the litigation, that consolidation is no longer appropriate.

Conclusion

For the reasons explained above, Plaintiff's Motion to Transfer for Coordination is GRANTED. Plaintiff shall take all administrative steps necessary to initiate transfer of the San Bernardino Action. Plaintiff to submit a proposed form of order.

Defendant's GS&F Evidentiary Objections to Hayes Declaration

Obj 1: Overruled.

Obj 2: Sustained. (Irrelevant to this motion.)

Obj 3: Sustained. (Irrelevant to this motion.)

Obj 4: Sustained. (Irrelevant to this motion.)

Obj 5: Overruled.

6. 9:00 AM CASE NUMBER: C24-00839
CASE NAME: JESSE MANCUSI SEGURA VS. OSMIN LIZANO SANCHEZ
***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL**
FILED BY: MANCUSI SEGURA, JESSE
TENTATIVE RULING:

Lillian Sedaghat ("Counsel") filed a Motion to be Relieved as Counsel on September 16, 2025 (the "Motion to be Relieved as Counsel"). The matter was set for hearing on February 2, 2026.

Background

Counsel seeks to be relieved as attorneys for plaintiff Jesse Mancusi Segura ("Client").

The supporting declaration filed by Counsel indicates that "[t]here has been an irretrievable break of the attorney-client relationship." See Declaration filed September 16, 2025, ¶2. Counsel's Client has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶3.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. The Court shall issue the order after hearing.

7. 9:00 AM CASE NUMBER: C24-00851
CASE NAME: DANIEL COSTA VS. FADIA SAADEH
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: SAADEH, FADIA
TENTATIVE RULING:

The parties have stipulated to the continuance of this motion. The Court will issue the order resetting the motion.

8. 9:00 AM CASE NUMBER: C24-01538
CASE NAME: FULLER PROPERTIES, LLC VS. SEQUOIA EQUITIES, INC.
***HEARING ON MOTION FOR DISCOVERY A PROTECTIVE ORDER, TO STAY ALL WRITTEN DISCOVERY, AND FOR THE ISSUANCE OF A CASE MANAGEMENT ORDER. FILED BY SEQUOIA EQUITIES, INC.**
FILED BY:
TENTATIVE RULING:

Defendants Sequoia Equities, Inc. and Alder Creek Management, Inc. (“Defendants”) filed their Motion for a Protective Order and Stay All Written Discovery and for the Issuance of a Case Management Order (the “Motion for a Protective Order and Other Relief”) on June 26, 2025. The Motion for a Protective Order and Other Relief was initially set for hearing on October 6, 2026.

A Motion to Consolidate Related Cases has also been filed as to this and a related case (the “Motion to Consolidate”). The Motion to Consolidate has been continued several times and is now pending in Department 39 and set to be heard on February 5, 2026.

The Court has trailed the Motion for a Protective Order and Other Relief several times to new court dates, pending the adjudication of the Motion to Consolidate.

Disposition

The Court finds and rules as follows:

1. The Motion for a Protective Order and Other Relief is continued for hearing to **March 16, 2026, 9:00 a.m., Department 34.**
2. The Court shall issue the order after hearing.

9. 9:00 AM CASE NUMBER: C25-01210
CASE NAME: SHARON DE EDWARDS MD VS. NANDI ROBISON
HEARING IN RE: MOTION TO DISMISS
FILED BY:
TENTATIVE RULING:

Before the Court is Defendant Nandi Robison’s Motion to Dismiss.

Factual and Procedural Background

This matter pertains to allegations that Plaintiff provided medical services to Defendant for which Defendant failed to make payment. It is alleged that Defendant initially used a credit card to charge the \$451.91 for medical consultation. Defendant thereafter reported the charge to her credit card as a fraudulent charge and received a refund. After calling the credit card company, Defendant went to Plaintiff’s office and indicated that her health plan was sending payment for the services and requested a refund of the \$451.91. Plaintiff issued Defendant a check for \$476.91 (which included payment of Defendant’s copay of \$25), which Defendant thereafter cashed.

Based on the above, Plaintiff filed her complaint on April 29, 2025, alleging three causes of action: (1) fraud; (2) false light; and (3) defamation. Plaintiff’s prayer seeks \$30,000 in compensatory damages as

well as \$10,000 in punitive damages.

Defendant filed her answer on June 11, 2025. Defendant then filed the instant motion to dismiss on September 22, 2025.

Applicable Law

Defendant filed her styled as a “motion to dismiss pursuant to Fed. R. Civ. P. 12(b)(6).” This matter is pending in state court, however. The Federal Rules of Civil Procedure do not apply. A motion to dismiss under the federal rules is equivalent, however, to a demur or motion for judgment on the pleadings (“MJOP”) under California law. (Compare Fed. R. Civ. Proc. 12(b)(6) and Code Civ. Proc. §§ 430.10(e) and 438(c)(B)(ii).)

While a demurrer is to be filed within 30 days of service of the complaint, a motion for judgment on the pleadings may be filed at any time after the “time for the defendant to demur to the complaint has expired,” if the defendant has filed an answer. (Code Civ. Proc. § 438(f).) Here, Defendant filed an answer on June 11, 2025, and the time to file a demur has expired. As such, the Court deems the instant motion a motion for judgment on the pleadings and finds that it is timely.

As the Court finds that the instant motion is one for judgment on the pleadings, the California rules applicable to such a motion apply.

Failure to Meet and Confer

“Before filing a motion for judgment on the pleadings pursuant to this chapter, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion for judgment on the pleadings for the purpose of determining if an agreement can be reached that resolves the claims to be raised in the motion for judgment on the pleadings.” (Code Civ. Proc. § 439 (a).) The meet and confer must occur at least 5 days before the MJOP is filed. (*Id.* at 439(a)(2).)

The moving party is required to file a declaration along with their MJOP papers that confirms (1) the parties properly met and conferred but did not reach an agreement or (2) the other party failed to respond to the meet and confer request or failed to meet and confer in good faith. (*Id.* at 439(a)(3).)

Defendant did not file any declaration along with her Motion, much less one that meets the above requirements. As the Code makes clear, the meet and confer is mandatory. Defendant’s status as an unrepresented party does not give her leeway to avoid this requirement.

Conclusion

Defendant’s motion to dismiss – *i.e.* motion for judgment on the pleadings – is **CONTINUED** to allow the parties time to properly meet and confer. The Court Orders as follows:

- The Parties must meet and confer in person or by phone or video conference on or before **Friday, February 20, 2026**.
- Following the meet and confer, Plaintiff must file a declaration demonstrating that the Parties met and conferred and indicating that the Parties either: (1) reached an agreement on the merits of the MJOP and the Parties are stipulating to the filing of an amended complaint, or (2) did not reach an agreement and the Court should proceed with ruling on the MJOP – or any portion thereof to which the Parties could not agree. Alternatively, a notice of settlement will suffice.

- The above declaration must be filed on or before **Wednesday, February 25, 2026**.
- The hearing on the MJOP is continued to **Monday, March 9, 2026**, at 9:00 a.m. in Department 34.

The Parties are strongly encouraged to discuss resolving this matter during the above meet and confer. The Court has concerns that this matter should not be classified as an unlimited civil matter and/or should be resolved through other means. The Court will address those concerns after it hears from the Parties regarding their meet and confer.

10. 9:00 AM CASE NUMBER: C25-01235
CASE NAME: CHARLES CAUFFIELD VS. CATHERINE AMOURIS
HEARING ON DEMURRER TO: CROSS-COMPLAINT OF CATHERINE AMOURIS
FILED BY: CAUFFIELD, CHARLES
TENTATIVE RULING:

Plaintiff and Cross-Defendant Charles Cauffield's meet and confer declaration shows that the moving party has not yet complied with Code of Civil Procedure, section 430.41. The Court continues the demurrer hearing on its own motion to **Monday, March 2, 2026**.

Of course, trial courts are not required to ignore defects in the meet and confer process. If, upon review of a declaration under section 430.41, subdivision (a)(3), a court learns no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort.

Dumas v. Los Angeles County Bd. of Supervisors (2020) 45 Cal.App.5th 348, 355, fn. 3.

Plaintiff and Cross-Defendant Charles Cauffield shall file a Code of Civil Procedure section 430.41 meet and confer declaration by **Friday, February 13, 2026**, showing compliance with the requirement to meet and confer "in person, by telephone, or by video conference." Code Civ. Proc. § 430.41(a).

11. 9:00 AM CASE NUMBER: C25-01812
CASE NAME: THERESA HOFFMAN VS. BASS MEDICAL GROUP
HEARING IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE FILED RE: CAIO FORMENTI
FILED BY: HOFFMAN, THERESA
TENTATIVE RULING:

Pursuant to the Notice of Taking Hearing Off Calendar filed January 22, 2026, this matter is DROPPED from calendar and the hearing VACATED.

12. 9:00 AM CASE NUMBER: C25-02784
CASE NAME: PETITION OF: GRANGE INSURANCE ASSOCIATION
HEARING IN RE: PETITION TO PERPETUATE TESTIMONY & PRESERVE EVIDENCE
FILED BY:
TENTATIVE RULING:

Petitioner Grange Insurance Association ("Petitioner") filed a Verified Petition to Perpetuate Testimony and Preserve Evidence on September 25, 2025 (the "Petition"). The matter was set for hearing on February 2, 2026.

Background

Petitioner seeks an order pursuant to California Code of Civil Procedure sections 2035.010 *et seq.* authorizing "pre-litigation discovery by taking oral depositions and/or preserving evidence for the purpose of perpetuating testimony relevant to an anticipated action involving Respondent Cynthia Gomez." Petition, p. 1.

Petitioner contends that it is "currently unable to bring or cause the anticipated action to be brought because Respondent has served a demand for arbitration on the Petitioner and a complaint has not yet been filed." Petition, p. 3.

Analysis

Code of Civil Procedure section 2035.010 provides that one "who expects to be a party or expects a successor in interest to be a party to an action that may be cognizable in a court of the state" may obtain discovery for the purpose of perpetuating that person's own testimony or that of another natural person or organization, or of preserving evidence for use in the event an action is subsequently filed. Code Civ. Proc. § 2035.010. The methods permissible for such discovery are enumerated in Code of Civil Procedure section 2035.020. *Id.* at § 2035.020. Code of Civil Procedure section 2035.010 and the related statutes are referred to herein as the "Preservation of Evidence Statutes."

The Preservation of Evidence Statutes require the filing of a verified petition in the "superior court of the county of the residence of at least one expected adverse party, or, if no expected adverse party is a resident of the State of California, in the superior court of a county where the action or proceeding may be filed." Code Civ. Proc. § 2035.030. The statutes prescribe the matters to be set forth in the verified petition, including:

- (1) The expectation that the petitioner or the petitioner's successor in interest will be a party to an action cognizable in a court of the State of California.
- (2) The present inability of the petitioner and, if applicable, the petitioner's successor in interest either to bring that action or to cause it to be brought.
- (3) The subject matter of the expected action and the petitioner's involvement. A copy of any written instrument the validity or construction of which may be called into question, or which is connected with the subject matter of the proposed discovery, shall be attached to the petition.
- (4) The particular discovery methods described in Section 2035.020 that the petitioner desires to employ.
- (5) The facts that the petitioner desires to establish by the proposed discovery.
- (6) The reasons for desiring to perpetuate or preserve these facts before an action has been

filed.

(7) The name or a description of those whom the petitioner expects to be adverse parties so far as known.

(8) The name and address of those from whom the discovery is to be sought.

(9) The substance of the information expected to be elicited from each of those from whom discovery is being sought.

Code Civ. Proc. § 2035.030(b)(1)-(9).

A petitioner is required to “...cause service of a notice of the petition under Section 2035.030 to be made on each natural person or organization named in the petition as an expected adverse party.”

Code Civ. Proc. § 2035.040. **This service shall be made in the same manner provided for the service of a summons. *Id.***

Service must be effected at least 20 days prior to the date specified in the notice for the hearing on the petition. Code Civ. Proc. § 2035.040(c).

If a court determines that all or part of the discovery requested under the Preservation of Evidence Statutes may prevent a failure or delay of justice, the court shall make an order authorizing that discovery. Code Civ. Proc. § 2035.050(a). The order shall identify any witness whose deposition may be taken, and any documents, things, or places that may be inspected, and any person whose physical or mental condition may be examined. *Id.* at § 2035.050(b).

Here, it is not evident to the Court that Petitioner is entitled to resort to the Preservation of Evidence Statutes where the matter in dispute is subject to arbitration, as Petitioner appears to concede. In such instances, arguably it cannot be said that there is an expectation that the petitioner will be a party to an action cognizable in a court of the State of California. While the Court is not aware of any California authorities on point, other courts have so held. See e.g. *In re Schumacher* (La. Ct. App., 4th Cir. 1980) 389 So. 2d 881, 882 (trial court erred in granting appellee's petition to perpetuate testimony because “[a]ppellee is bound to the arbitration provision of his agreement and is therefore unable to bring an action ‘cognizable in any court of this state’”).

Moreover, the present Petition does not attach any governing arbitration agreement or otherwise address the extent to which discovery may be available in the arbitration forum. If the arbitration forum provides for discovery or discovery-like mechanisms, it is not clear to the Court that resort to the Preservation of Evidence Statutes is necessary to prevent a failure or delay of justice.

In any event, the Court need not decide these issues at this stage because no Proof of Service has been filed reflecting service in conformance with Code of Civil Procedure section 2035.040.

Disposition

The Court finds and rules as follows:

1. The Petition shall be CONTINUED to a new hearing date to permit service to be done.
2. Petitioner is ORDERED TO APPEAR to address service and an appropriate continued hearing date.

13. 9:00 AM CASE NUMBER: MSC14-02341
CASE NAME: NAVY FEDERAL CREDIT UNION VS. BRAINERD
***HEARING ON MOTION IN RE: EARNINGS WITHHOLDING ORDER ON SPOUSE'S COMMUNITY**
PROPERTY WAGES
FILED BY: NAVY FEDERAL CREDIT UNION
TENTATIVE RULING:

Plaintiff and Judgment Creditor Navy Federal Credit Union ("Judgment Creditor") filed a Motion for Earnings Withholding Order on Spouse's Community Property Wages on September 12, 2025 (the "Motion for Spouse Wage Garnishment"). The Motion for Spouse Wage Garnishment was set for hearing on February 2, 2026. The motion was duly served and is unopposed.

Background

A money judgment was entered herein on August 4, 2015 against defendant and judgment debtor Lucinda M. Brainerd ("Judgment Debtor") in the total amount of \$52,305.09 (the "Judgment"). The Judgment was renewed in 2025.

Judgment Creditor has now filed its Motion for Spouse Wage Garnishment on the grounds that the Judgment remains unsatisfied and that the underlying obligation arise at a time when the Judgment Debtor was married to Timothy Brainerd.

A similar motion was filed in 2016 and granted. See Order dated September 22, 2016 (granting unopposed motion to authorize wage garnishment as to Timothy Brainerd).

Analysis

Family Code section 910(a) provides:

Except as otherwise expressly provided by statute, the community estate is liable for a debt incurred by either spouse before or during marriage, regardless of which spouse has the management and control of the property and regardless of whether one or both spouses are parties to the debt or to a judgment for the debt.

See Fam. Code § 910(a).

To seek an earnings withholding order against a judgment debtor's spouse, a judgment creditor must obtain a court order upon a noticed motion. Code Civ. Proc. § 706.109 ("An earnings withholding order may not be issued against the earnings of the spouse of the judgment debtor except by court order upon noticed motion.").

The Judgment Creditor's supporting declaration demonstrates that Lucinda M. Brainerd and Timothy Brainerd are wife and husband. See Declaration of Bryan M. Grundon filed September 12, 2025. This is corroborated by the Judgment Debtor's own statements in the attached debtor examination questionnaire. *Id.* at **Exhibit A**.

There is no opposition and no showing by the Judgment Debtor or the Judgment Debtor's spouse that underlying obligation and/or the Judgment for the debt is not an obligation of the community estate for which the community wages of the Judgment Debtor's spouse may be garnished in satisfaction.

Disposition

The Court finds and rules as follows:

1. The Motion for Spouse Wage Garnishment is GRANTED.
2. Upon issuance of writ of execution herein by the Court and the Judgment Creditor's filing of an Application for Earnings Withholding Order and related papers, the levying officer is directed to issue the subject wage garnishment as to Timothy Brainerd.
3. The Court shall issue the order after hearing.

14. 9:00 AM CASE NUMBER: MSC20-00156
CASE NAME: ADELPHOS VS BAY AREA ELEVATOR
***HEARING ON MOTION IN RE: RELEASE OF INTERPLEAD FUNDS**
FILED BY: ADELPHOS, LLC, A LIMITED LIABILITY COMPANY
TENTATIVE RULING:

Plaintiff Adelphos, LLC ("Plaintiff") filed a Motion for Release of Interpleaded Funds on September 17, 2025 (the "Motion for Release of Interpleaded Funds"). The matter was set for hearing on February 2, 2026.

Background

Plaintiff filed its Complaint on January 27, 2020 alleging various causes of action against the name defendants. A Notice of Settlement of Entire Case was filed February 21, 2025.

Plaintiff's motion is made on the grounds that Plaintiff has settled and dismissed all claims against all defendants that have appeared in this matter, no adverse claimants remain, and Plaintiff is the sole party entitled to the funds. See Declaration of Brian M. Junginger filed September 17, 2025, ¶¶2-5.

Analysis

The Motion for Release of Interpleaded Funds is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion for Release of Interpleaded Funds is GRANTED.
2. Plaintiff to submit a proposed form of order after hearing.

15. 9:00 AM CASE NUMBER: MSC21-02364
CASE NAME: HOOKER VS. MICHAEL C. STEAD INC.
***HEARING ON MOTION IN RE: STRIKE, OR IN THE ALTERNATIVE, TAX COSTS.**
FILED BY:
TENTATIVE RULING:

Defendant Kia America, Inc. ("Kia") filed a Motion to Strike, or in the Alternative, Tax Costs on July 22, 2025 (the "Motion to Tax Costs"). The Motion to Tax Costs was initially set for hearing on October 20, 2025. Plaintiff Eric Hooker ("Plaintiff") separately filed a Motion for Attorney's Fees, Costs and Expenses

on July 3, 2025 (the “Motion for Fees and Costs”). The Motion to Tax Costs was continued several times along with the Motion for Fees and Costs. That motion is addressed in a separate tentative ruling issued by the Court. The Motion to Tax Costs is currently set for hearing on February 2, 2026, along with the Motion for Fees and Costs. The motion is opposed.

Background

As against Kia, this matter was resolved by way of a settlement agreement between the Plaintiff and Kia. See Compendium of Exhibits filed July 3, 2025 (“Plaintiff’s Exhibits”), **Exhibit 2**. Among the terms was a settlement payment of \$22,500 payable to Plaintiff by Kia. *Id.* at p. 3. The agreement also stipulates that Plaintiff is the prevailing party and provides for recovery of attorneys’ fees “reasonably and necessarily incurred by Plaintiff in connection with the commencement and prosecution of the Action.” *Id.* at pp. 4-5.

The Motion to Tax Costs is supported by the Declaration of Corinne D. Orquiola filed as part of the Motion to Tax Costs (the “Supporting Declaration”).

Plaintiff filed an Opposition on October 7, 2025, along with the Declaration of Christopher P. Barry (“Barry Decl. re Costs”) and Compendium of Exhibits (“Opposition Exhibits”) filed that same date. The Opposition Exhibits included Exhibits 1 through 25 with supporting documentation in connection with the costs claimed. See Opposition Exhibits, **Exhibits 1-25**.

Kia filed a Rely on October 13, 2025.

Analysis

When awarding costs, a court must apply the following principles: (1) costs are allowable if incurred, whether or not paid; (2) allowable costs must be reasonably necessary to the conduct of the litigation, not merely convenient or beneficial to its preparation, and (3) allowable costs must be reasonable in amount. See CJER, *California Judges Benchbook: Civil Proceedings—Trial* (2025) (“CJER Civ. Pro.—Trial”), § 16.17; see Code Civ. Proc. § 1033.5. If the items on a verified memorandum of costs appear to be proper charges, the memorandum is prima facie evidence of their propriety and the burden is on the party contesting them to show that they were not reasonable or necessary. *Hooked Media Group, Inc. v. Apple Inc.* (2020) 55 Cal.App.5th 323, 338; see CJER Civ. Pro.—Trial, § 16.18. Moreover, Plaintiff is entitled to recover expenses beyond those allowable in Code of Civil Procedure section 1033.5, by virtue of, at the very least, the parties’ settlement agreement.

Plaintiff’s Motion for Fees and Costs was supported by a filed memorandum of costs. See Compendium of Exhibits filed July 3, 2025, **Exhibit 4** [Memorandum of Costs (Summary) and Worksheet] (the “Memorandum of Costs”). The Memorandum of Costs was verified under penalty of perjury. *Id.* The Memorandum of Costs reflects total incurred costs of \$22,612.08 across six categories, including \$14,503.43 in “Other” costs that are itemized in Attachment 16.

Plaintiff has withdrawn a \$129.95 item for service of a subpoena erroneously double billed and a \$32.16 for a shipping cost. See Opposition, p. 1. Those amounts total \$162.11. \$22,612.08 less \$162.11 totals \$22,449.97, the amount Plaintiff now seeks. *Id.*

Kia’s Opposition asks the Court to strike all of the costs because the initial submittal by Plaintiff contained “no evidence” to support the costs claimed. That is wrong. The verified Memorandum of Costs is prima facie evidence of the validity of the costs. Moreover, Plaintiff has submitted further submitting documentation as part of the Opposition Exhibits.

Kia contends that Plaintiff cannot recover costs “against the settling defendants who have already included costs in their settlement.”

First, costs are not incurred “against” any particular defendant or defendants. Costs may be incurred in connection with the conduct of the litigation as relates to issues involving certain parties. The broad assertions by Kia fail to demonstrate that any given costs related to the conduct of litigation that did not relate to the prosecution of the case in any way as relates to Kia.

Second, the Settlement Agreement bound Kia to pay “Plaintiff’s costs and expenses.” See Agreement, pp. 4-5, Plaintiff’s Exhibits on the Motion for Fees and Costs, **Exhibit 2**. This agreement certainly could have limited the recovery of costs to those incurred in connection with litigating the case as relates to Kia or imposed on recovery of costs incurred in the period before March 7, 2023. It did not. *Id.*

The Court makes the further determinations set forth below regarding the challenged costs and expenses.

Item 1 (\$435.00). Kia’s Motion to Tax Costs is DENIED as to this item. The Court finds that this is an allowable cost which was necessary to the conduct of the litigation and reasonable in amount.

Item 5 (\$2,711.20). Kia’s Motion to Tax Costs is GRANTED as to the \$129.95 duplicative item conceded by Plaintiff and otherwise DENIED.

Item 16 (\$14,504.43).

Filing of Writ. Kia’s Motion to Tax Costs is GRANTED as to \$819.25 cost for the “Filing of Writ.”

Shipping Costs. Kia’s Motion to Tax Costs is GRANTED as to (1) the \$90.53 Federal Express shipping cost to “serve the court with the writ,” and (2) the \$39.92 Federal Express shipping cost to “to ship the writ to LegalConnect.”

The Court finds that the balance of the claimed costs and expenses are either allowable costs and/or recoverable expenses, all of which were necessary to the conduct of the litigation and reasonable in amount.

The total stricken or reduced costs and/or expenses total \$1,111.81. Deducting this amount from the claimed costs and expenses leaves recoverable total costs and expenses in the amount of \$21,500.27, which amount the Court finds to be the total recoverable costs of suit.

Disposition

The Court finds and orders as follows:

1. The Motion to Tax Costs is GRANTED IN PART and DENIED IN PART, as set forth above.
2. Plaintiff is awarded and shall recover from Kia costs of suit in the sum of \$21,500.27.
3. Plaintiff to prepare a proposed form of order after hearing. A single form of order shall be prepared with the Court’s ruling on both the Motion to Tax Costs and the Motion for Fees and Costs.

16. 9:00 AM CASE NUMBER: MSC21-02364
CASE NAME: HOOKER VS. MICHAEL C. STEAD INC.
*HEARING ON MOTION IN RE: ATTORNEY'S FEES, COSTS, AND EXPENSES
FILED BY:
TENTATIVE RULING:

Plaintiff Eric Hooker ("Plaintiff") filed a Motion for Attorney's Fees, Costs and Expenses on July 3, 2025 (the "Motion for Fees and Costs"). Plaintiff seeks an award of \$253,891.00 in attorneys' fees and \$22,612.08 in costs as against defendant Kia America, Inc. ("Kia"). The Motion for Fees and Costs was initially set for hearing on October 20, 2025. The motion was continued several times, most recently to permit the filing of a sur-reply. The motion is currently set for hearing on February 2, 2026. The motion is opposed.

Background

As against Kia, this matter was resolved by way of a settlement agreement between the Plaintiff and Kia. See Compendium of Exhibits filed July 3, 2025 ("Plaintiff's Exhibits"), **Exhibit 2**. Among the terms was a settlement payment of \$22,500 payable to Plaintiff by Kia. *Id.* at p. 3. The agreement also stipulates that Plaintiff is the prevailing party and provides for recovery of attorneys' fees "reasonably and necessarily incurred by Plaintiff in connection with the commencement and prosecution of the Action." *Id.* at pp. 4-5.

The Motion for Fees and Costs is supported by the Declaration of Brianna A. Means filed on July 3, 2025, the Declaration of Michelle A. Cook filed on July 3, 2025, the Declaration of Gregory T. Babbitt filed on July 3, 2025, and the Declaration of Christopher P. Barry ("Barry Decl.") filed on July 3, 2025 (collectively, the "Supporting Declarations").

The Declaration of Christopher P. Barry describes the firm's billing practices and provides an overall summary of the total billed hours, the hourly rates by timekeeper and the total amount billed (\$253,891.00) with a breakdown by timekeeper. See Barry Decl., ¶13.

The declaration further breaks down the billings by categories and phases of litigation related tasks. See *id.* at ¶14 *et seq.* This includes items such as "158.1 hours/\$66,699.00" for discovery related work, "18.7 hours/\$8,415.00" for writ proceedings (regarding "drafting a writ to challenge the trial court's ruling on a demurrer filed by Kia."), and "322.9 hours/\$148,762.00" attributed to "Litigation/Trial" related matters. *Id.* Plaintiff proffers historical information regarding other litigated matters and billing rates approved in such matters. See *id.* at ¶17 *et seq.*

Mr. Barry's declaration and the other submitted Supporting Declarations detail the billing attorneys' and paralegals' background and professional experience, and provide information regarding their roles and work in the case.

Kia filed an Opposition on October 7, 2025, along with a set of Evidentiary Objections filed that same date ("Kia's Objections").

Plaintiff filed a Rely on October 13, 2025, along with a supplemental Declaration of Christopher P. Barry on the same date ("Supp. Barry Decl."). That supplemental declaration attaches a spreadsheet of detailed billing time entries. Supp. Barry Decl., **Exhibit 1**.

Kia filed a second set of Evidentiary Objections ("Kia's Further Objections"). Kia's Further Objections were resolved by the Court granting a continuance of the hearing and permitting Kia to file a sur-reply.

Defendant KIA America, Inc. filed a Sur-Reply in Support of Its Opposition on January 16, 2026. The Sur-Reply included the Declaration of Corinne D. Orquiola ("Orquiola Decl."). That declaration summarizes Kia's review of the proffered billing entries and totaled certain categories of billing which it intensified as unnecessary or otherwise not properly recoverable. See Orquiola Decl., ¶¶2-3 and **Exhibit A** thereto (\$7,406.56 attributable to fruitless writ petition, \$17,551.00 related to certain causes of action for which Kia contends prevailing party attorneys' fees are unavailable, \$9,599 related to discovery motions "NEVER SERVED/FILED," \$466.50 related to "ADMINISTRATIVE, INTER-OFFICE, DUPLICATIVE WORK," \$4,790.00 for billings described as "VAGUE AND UNINTELLIGIBLE").

Kia's Objections

Objection No. 1: OVERRULED.

Objection No. 2: OVERRULED.

Objection No. 3: OVERRULED. This objection appears to be blank and does not refer to any portion of the submitted moving papers.

Objection No. 4: OVERRULED. The moving party is not citing "unpublished decisions" for purposes of argument as to controlling legal authority. The moving party is referring to cases in which the moving party's attorneys have been involved. Moreover, there is sufficient foundation as to the declarant's knowledge of the history and outcome of such matters so as to proffer the compilation of information about hourly rates approved in those matters. Lastly, the Court has discretion to receive and consider the summary in this fashion. The "voluminous writing rule" allows admission of a statement or summary reflecting numerous accounts or documents "'which cannot be examined in court without great loss of time.'" *Globe Mfg. Co. v. Harvey* (1921) 185 Cal. 255, 261; see *Schellinger Brothers v. Cotter* (2016) 2 Cal.App.5th 984, 1008. Nor does the Court find that the probative value of the summary is substantially outweighed by the probability that its admission will necessitate undue consumption of time and create a substantial danger of undue prejudice, of confusing the issues, or of misleading the jury. Evid. Code § 352.

Objection No. 5: OVERRULED. See reasons set forth above regarding Objection No. 4.

Objection No. 6: OVERRULED. See reasons set forth above regarding Objection No. 4.

Objection No. 7: OVERRULED.

Objection No. 8: OVERRULED.

Objection No. 9: OVERRULED.

Objection No. 10. The reference appears to be erroneous and there is no separate Objection No. 10.

Objection No. 11: OVERRULED.

Objection No. 11(sic): OVERRULED. There appears to be a second separate objection labeled Objection No. 11.

Objection No. 12: OVERRULED.

Objection No. 13: OVERRULED. The Court considers this ruling by another Superior Court merely as demonstrative of the declarant's testimony about the methodology utilized and not as binding authority in any sense.

Analysis

A trial court has broad authority to determine the amount of reasonable attorneys' fees. *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095; see CJER, *California Judges Benchbook: Civil Proceedings—Trial* (2025) ("CJER Civ. Pro.—Trial"), § 16.83. The fee setting inquiry ordinarily begins with the "lodestar," i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. *PLCM Group, Inc. v. Drexler, supra*, 22 Cal.4th at 1095. California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award. *Id.* The reasonable hourly rate is that prevailing in the community for similar work. *Id.* The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. *Id.* The trial court makes its determination after consideration of a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case. *Id.* at 1096.

Courts have observed that a categorical breakout of time expended by each billing attorney and paralegal is a proper method of review and "an especially helpful compromise between reporting hours in the aggregate (which is easy to review, but lacks informative detail) and generating a complete line-by-line billing report (which offers great detail, but tends to obscure the forest for the trees)." *Syers Properties III, Inc. v. Rankin* (2014) 226 Cal.App.4th 691, 700, quoting *In re HPL Techs., Inc., Secs. Litig.* (N.D. Cal. 2005) 366 F. Supp. 2d 912, 920.

The Court has reviewed the stated hours and the nature of the legal work reflected therein, considering, among other things, the categories of work described as well as the particular information provided by all parties as to the nature and necessity of such work. The Court has considered the hourly rates by timekeeper for such work and the number of hours reasonably expended by such timekeepers. The Court has also otherwise considered the hours sought and charges therefor in view of all of the relevant factors, as noted above.

The Court reduces the requested fees by the \$7,406.56 attributable to Plaintiff's unsuccessful writ petition. The Court also reduces the amounts sought for discovery related work ("158.1 hours/\$66,699.00") by \$12,500.00. The Court also reduces the award by \$5,256.50 for administrative and other internal tasks whose reasonableness and value to the conduct of the litigation is unclear and/or marginal. The reductions total \$25,163.06.

The Court has considered and rejects Kia's contention that Plaintiff cannot recover for legal fees incurred to litigate Kia's demurrer, or otherwise, because certain asserted claims do not provide for recovery of attorneys' fees. Kia's arguments miss the mark. Plaintiff is entitled to recover fees by virtue of the Settlement Agreement. That agreement provides that Plaintiff is the prevailing party and Kia agreed to pay the attorneys' fees "reasonably and necessarily incurred by Plaintiff in connection with the commencement and prosecution of the Action." See Agreement, pp. 4-5, Plaintiff's Exhibits, **Exhibit 2**. Plaintiff's right to recover attorneys' fees at this stage is not dependent on the nature of any of the particular causes of action.

The Court finds that the balance of the hours sought and charges therefor were reasonable and necessary to the conduct of the litigation.

Costs

Costs are addressed in detail in the ruling on the concurrent motion to tax costs.

Disposition

The Court finds and orders as follows:

1. The Motion for Fees and Costs is GRANTED.
2. Plaintiff is awarded and shall recover from Kia attorneys' fees in the sum of **\$228,727.94**.
3. Plaintiff is awarded and shall recover from Kia costs of suit in the sum of **\$21,500.27**.
4. Plaintiff to prepare a proposed form of order after hearing.

17. 9:00 AM CASE NUMBER: N25-1830
CASE NAME: CLAIM OF: AVERY BENITEZ AVERY BENITEZ
***HEARING ON MINOR'S COMPROMISE**
FILED BY:
TENTATIVE RULING:

Plaintiff Don Benitez ("Plaintiff") filed a Petition for Approval of Compromise on or about September 12, 2025 (the "Minor's Compromise") seeking court approval of the compromise and proposed disposition set forth therein. See Code Civ. Proc. § 372 and Rule 7.950 *et seq.* of the California Rules of Court (CRC). The Minor's Compromise was set for hearing on February 2, 2026.

Analysis

The Minor's Compromise is unopposed.* The Court has considered the verified Minor's Compromise and finds the proposed terms to be just and reasonable.

*Although no proof of service appears of record, it appears that no prior notice to other parties is mandatory. See CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) ("CJER Civ. Pro.—Before Trial"), § 5.45 (observing that neither the Code of Civil Procedure nor the CRC contemplate a noticed motion for approval of a minor's compromise and concluding that a judge "may decide a petition to approve or disapprove a minor's compromise on an ex parte basis, in chambers"). In any event, no party has sought to appear to oppose the Minor's Compromise.

Disposition

The Court finds and rules as follows:

1. The Minor's Compromise is APPROVED.
2. The Court shall enter the proposed forms of order lodged with the moving papers.

Courtroom Clerk's session

18. 10:00 AM CASE NUMBER: C23-01955
CASE NAME: NICOLE TRIPPIE VS. MISTY LEONE
COURT TRIAL HEARING BIFURCATED AS TO THE ISSUE OF THE OPERATING AGREEMENT.
FILED BY:

TENTATIVE RULING:

Parties to Appear.

**Law & Motion
Add On**

**19. 9:00 AM CASE NUMBER: C23-01939
CASE NAME: STEVE HARDIN VS. DOES 1 THROUGH 50, INCLUSIVE
HEARING IN RE:
FILED BY:**

TENTATIVE RULING:

Parties to Appear.